

[10 EDW. 7 &
1. GEO. 5.]

*Middlesbrough Corporation
Act, 1910.*

[Ch. cxix.]



CHAPTER cxix.

An Act to confer further powers upon the mayor aldermen and burgesses of the county borough of Middlesbrough with respect to the supply of gas and electricity to establish an accident fund to make further provision for the health local government and improvement of the borough and for other purposes. A.D. 1910.

[3rd August 1910.]

WHEREAS the county borough of Middlesbrough in the north riding of the county of York (hereinafter called "the borough") is subject to the Acts relating to municipal corporations and the mayor aldermen and burgesses of the borough (hereinafter called "the Corporation") acting by the council are the urban sanitary authority for the district of the borough:

And whereas the Corporation are the owners of the undertakings by which the borough is supplied with gas and electricity:

And whereas it is expedient that the provisions contained in the special Acts and Order confirmed by Parliament with respect to the quality testing and pressure of gas supplied by the Corporation be amended and that further provision be made in regard to the supply of gas and electricity by the Corporation:

And whereas the Corporation have by reason of the large increase in the demand for gas supplied by them expended moneys in providing gas mains and meters in excess of the sums which they were authorised to borrow for those purposes and it is expedient that such expenditure be sanctioned and confirmed:

And whereas it is expedient that the Corporation be authorised to borrow further moneys for the purposes of this Act:

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And whereas estimates have been prepared by the Corporation in relation to the following purposes in respect of which they are by this Act authorised to borrow money and such estimates are as follows:—

For repayment of the said expenditure up to the date of the passing of this Act (a) on gas mains a sum not exceeding eight thousand five hundred pounds and (b) on gas meters a sum not exceeding five thousand five hundred pounds;

For providing (c) gas mains twenty-six thousand pounds and (d) gas meters and fittings twenty thousand pounds:

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof be spread over a term of years:

And whereas it is expedient that provision be made for regulating the sale of coke within the borough:

And whereas it is expedient that a fund be established for the purpose of meeting claims made against the Corporation by their employees in cases of accident:

And whereas it is expedient that further powers be conferred upon the Corporation with reference to streets and buildings and that further provision be made in relation to the health local government and improvement of the borough and other matters as by this Act provided:

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

And whereas an absolute majority of the whole number of the council at a meeting held on the seventh day of December one thousand nine hundred and nine after ten clear days' notice by public advertisement of such meeting and of the purposes thereof in the North Eastern Daily Gazette a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and borough rate and the district fund and general district rate in equal proportions:

And whereas such resolution was published twice in the said North Eastern Daily Gazette and in the North Star a newspaper also published and circulating in the borough and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill A.D. 1910.
for this Act was confirmed by an absolute majority of the whole
number of the council at a further special meeting held in
pursuance of a similar notice on the fourth day of January one
thousand nine hundred and ten being not less than fourteen
days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for
this Act the requirements contained in the First Schedule to the
Borough Funds Act 1903 have been observed:

May it therefore please Your Majesty that it may be
enacted and be it enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Middlesbrough Corporation Short title.
Act 1910.

2. This Act is divided into Parts as follows:—

Act divided
into Parts.

Part I.—Preliminary.

Part II.—Gas and Electricity.

Part III.—Finance.

Part IV.—Ice Creams.

Part V.—Sale of Coke.

Part VI.—Miscellaneous.

3. In this Act unless the context otherwise requires—

Interpreta-
tion.

“The borough” means the municipal and county borough
of Middlesbrough;

“The Corporation” means the mayor aldermen and
burgesses of the borough;

“The mayor” and “the town clerk” mean respectively
the mayor and the town clerk of the borough and
respectively include any person duly authorised to
discharge temporarily the duties of those officers;

“The borough surveyor” “the borough accountant” “the
borough treasurer” “the medical officer” and “the

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inspector of nuisances ” mean respectively the surveyor the accountant the treasurer the medical officer of health and any inspector of nuisances or sanitary inspector of the borough and respectively include any person duly authorised to discharge temporarily the duties of those officers ;

“The borough fund ” “the borough rate ” “the district fund ” and “the general district rate ” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough ;

“The town hall ” means the town hall of the borough ;

“Limits of supply ” means the limits within which the Corporation are authorised to supply gas or electricity as the case may require ;

“Principal moneys ” means any moneys borrowed or to be borrowed by the Corporation under any statutory borrowing power including the borrowing powers under this Act and not raised by the issue of Corporation stock or debenture stock ;

“Revenues of the Corporation ” means the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and rates or contributions leviable by or on the order or precept of the Corporation ;

“Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed ;

“Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust

money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rent-charges or securities transferable by delivery or any securities of the Corporation. A.D. 1910.

Words and expressions to which meanings are assigned by the Public Health Acts have in this Act the same respective meanings unless the subject or context otherwise requires.

4. This Act shall be carried into execution by the Corporation acting by the council and shall extend and apply to and within the borough unless otherwise expressed or implied. Execution and limits of Act.

PART II.

GAS AND ELECTRICITY.

5.—(1) The Corporation may purchase provide sell let for hire fix alter repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon. Power to supply gas fittings &c.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof.

(3) Article II. of the Middlesbrough Order 1883 is hereby repealed but without prejudice to existing contracts.

6.—(1) The Corporation may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the limits of supply through any other kind of meter or by any other method of supply. Charges for gas supplied by means of prepayment meters.

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(2) The Corporation shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Corporation in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum on the cost of the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Anti-fluctua-
tors for gas
engines.

7. Every consumer of gas supplied by the Corporation who uses a gas engine shall if required to do so by the Corporation use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper repair and in default of his so using or keeping such anti-fluctuator in proper repair the Corporation may cease to supply gas to such consumer. The Corporation shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Corporation if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

Altering pro-
visions of
former Acts
regulating
quality
testing and
pressure of
gas.

8. Notwithstanding any provision contained in any former Acts relating to the gas undertaking of the Corporation for regulating the quality testing and pressure of gas supplied by the Corporation the following provisions shall apply:—

(1) The provisions of this section shall commence and have effect from and after the expiration of three months from the passing of this Act except paragraph (c) of subsection (4) which shall take effect as from the passing of this Act:

- (2) The prescribed number of candles for the purposes of the Gasworks Clauses Act 1871 shall not be less than twelve: A.D. 1910. —
- (3) For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be the existing testing place at the gasworks of the Corporation:
- (4) (A) The quality of the gas supplied by the Corporation shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by twelve sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871;
- (B) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan argand No. 2 the photometer shall be the bar photometer or table photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Corporation or any five consumers approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing;
- (C) The Corporation shall within three months from the passing of this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair:
- (5) All gas supplied by the Corporation to any consumer of gas shall be supplied at such pressure as to balance from midnight to sunset a column of water not less than six tenths of an inch in height and to balance from sunset to midnight a column of water not less than eight tenths of an inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer Any gas examiner appointed under the Gasworks Clauses Act

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—

1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied The Corporation shall afford to the examiner all reasonable facilities for making the test:

(6) Sections 37 38 39 40 and 41 of the Middlesbrough Extension and Improvement Act 1866 and section 10 of the Middlesbrough Corporation (Gas) Act 1898 are hereby repealed.

Exemption
from penal-
ties in certain
cases.

9. No penalty shall be incurred by the Corporation for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Corporation Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Corporation.

Power to
lay pipes in
streets not
dedicated to
public use.

10. The Corporation may upon the application of the owner or occupier of any premises abutting on or erected or being erected in any street within the limits of supply laid out or made but not dedicated to public use supply such premises with gas or electricity and may lay down take up alter relay repair remove and renew in across or along or out of such street such pipes electric lines and apparatus as may be requisite or proper for furnishing such supply in the same way and to the same extent as if such street had been dedicated to public use In this section the expression "street" includes any road lane footway footpath or passage.

Power to
lay down
and use pipes
for ancillary
purposes.

11. The Corporation may lay down take up alter relay repair remove and renew mains and pipes within any street road lane footway footpath or passage within the limits of supply for the purposes of procuring conducting or disposing of any tar or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid and the restrictions contained in section 32 of the Tramways Act 1870 with respect to the opening or breaking up of any

road along or across which any tramway is laid for the purpose of laying down repairing altering or removing any pipe for the supply of gas shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains and pipes. A.D. 1910.

12. For the protection of the North Eastern Railway Company (hereinafter in this section called "the company") the following provisions shall unless otherwise agreed between the Corporation and the company be observed and have effect (that is to say):—

For protec-
tion of North
Eastern
Railway
Company.

(1) Whenever under the powers of the sections of this Act whereof the marginal notes are "Power to lay pipes in streets not dedicated to public use" and "Power to lay down and use pipes for ancillary purposes" the Corporation shall require to lay down take up alter relay remove repair or renew any mains pipes lines or apparatus upon across or under any railway for the time being belonging to or worked by the company or the stations bridges approaches or other works thereof or to construct any works adjoining thereto they shall give to the engineer of the company fourteen days' notice in writing of their intention to carry out any such works accompanied by sufficient plans:

(2) Such works including the making good and repairing of any roads over any such railway and over any bridges and approaches which the company is or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Corporation shall be laid constructed and executed at the expense of the Corporation under the superintendence and to the reasonable satisfaction of the said engineer and according to plans and sections to be previously reasonably approved by him and so as to avoid as far as possible injury to any such railway or any of the works thereof and so as not to cause any interruption to the passage or conduct of the traffic over or at any such railway or station:

(3) When the Corporation open or break up any road or pavement of any street or other works belonging to or repairable by the company they shall with all convenient speed complete the work for which the same

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shall be broken up and reinstate and make good the road or works so opened or broken up and shall keep any road or pavement so broken up in good repair for three months after reinstatement and making good and for such further time if any not being more than twelve months in the whole as the soil so broken up shall continue to subside:

- (4) If the Corporation make delay in completing such work or reinstating and making good such road or works so opened or broken up or neglect to keep the road or pavement in repair as aforesaid the company may cause the work so delayed or omitted to be executed and the expense of executing the same shall be repaid to them by the Corporation:
- (5) The Corporation shall repay to the company the expense of any temporary works or watching which the company may reasonably consider necessary to provide for the protection of any such railway or the traffic thereon during the carrying out of the works aforesaid:
- (6) If any injury shall owing to or by reason of any of the matters aforesaid arise to any such railway or works or interruption to such traffic the Corporation shall make full satisfaction in respect thereof to the company and in the event of any dispute as to the amount of such satisfaction the same shall be determined by arbitration in manner hereinafter provided:
- (7) Any difference which may arise between the Corporation and the company under the provisions of this section shall unless otherwise agreed be settled by arbitration under the provisions of the Arbitration Act 1889 by an engineer to be appointed by the President of the Institution of Civil Engineers at the request of either party.

Consumers
of gas to
give notice
to Corpora-
tion before
removing.

13. At least twenty-four hours' notice in writing shall be given to the Corporation by every consumer of gas before he shall quit any premises supplied with gas by meter by the Corporation and in default of such notice the consumer so quitting shall be liable to pay to the Corporation the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the

date from which any subsequent occupier of such premises shall require the Corporation to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for charges for gas payable to the Corporation. A.D. 1910.

14. The Corporation may refuse to supply gas to any person whose payments for the supply of gas or meter rent are for the time being in arrear (not being the subject of a bonâ fide dispute) whether such payments be due to the Corporation in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises. Corporation may refuse to supply gas in certain cases.

15. A notice to the Corporation from a consumer for the discontinuance of a supply of gas or electricity shall not be of any effect unless it be in writing signed by or on behalf of the consumer and left at or sent by post to the gas or electricity office (as the case may be) of the Corporation. Notice to discontinue supply of gas or electricity.

16. The Corporation may construct and maintain in or under any street repairable by the inhabitants at large sub-stations transforming-stations and other works in connection with their electricity undertaking and may in any such street provide and maintain all such means of access and approach to such sub-stations transforming-stations and works as may be necessary or convenient. Power to construct electrical sub-stations understreets.

In the exercise of the powers of this section the Corporation shall not in any way injure the tramways belonging to the Imperial Tramways Company Limited nor obstruct or interfere with the working of the traffic passing along the same.

17.—(1) The Corporation may provide sell let for hire and fix set up repair and remove but shall not manufacture lamps meters electric lines fuses switches fittings lampholders motors and other apparatus and things for lighting and motive power and for all other purposes for which electricity can or may be used or otherwise necessary or proper for the supply distribution consumption or use of electricity and may provide all materials and do all work necessary or proper in that behalf and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of such lamps meters electric lines fuses switches fittings lamp- Corporation may provide electrical apparatus.

A.D. 1910. — holders motors and other apparatus and things as aforesaid and for securing (both as regards the consumer and third parties) their safety and return to the Corporation as the Corporation may think fit or as may be agreed upon between them and the person to or for whom the same are sold supplied let fixed set up altered repaired or removed.

(2) The Corporation may enter into and carry into effect contracts for the execution of any of the powers of this section including the wiring of private property but they shall not themselves execute the wiring of private property except between the main of the Corporation and the consumers' meters.

As to ex-
penses and
receipts.

18.—(1) Any expenses incurred by the Corporation in carrying into effect the provisions of this Part of this Act relating to the supply of electricity and for which no other provision is made by this Act shall be deemed to be expenses incurred by the Corporation under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of section 7 (Expenses of local authority) and section 8 (Power of local authority to borrow money) of that Act shall extend and apply accordingly to such expenses.

(2) Any money received by the Corporation under the said provisions shall be applied in manner provided by section 52 (Application of revenue) of the Middlesbrough Corporation Electric Lighting Order 1898 except capital moneys which shall be applied in manner provided by section 53 (Application of capital moneys) of the said Order.

PART III.

FINANCE.

Expenditure
on gas mains
and meters.

19. All expenditure made by the Corporation before the passing of this Act for the purpose of providing and laying down gas mains not exceeding the sum of eight thousand five hundred pounds and for the purpose of providing and fixing gas meters not exceeding the sum of five thousand five hundred pounds in excess of the amounts authorised to be borrowed for such purposes is hereby ratified and confirmed and the Corporation shall repay to the account or fund out of which such expenditure was respectively made the whole of such expenditure out of moneys by this Act authorised to be borrowed by them for those purposes respectively.

20. The Corporation may from time to time borrow at A.D. 1910.
interest—

Power to
borrow.

- (1) For and in connection with the expenditure confirmed by the last preceding section of this Act on security of the district fund and general district rate any sums not exceeding—

(A) In respect of gas mains eight thousand five hundred pounds;

(B) In respect of gas meters five thousand five hundred pounds:

- (2) For and in connection with the provision of—

(C) Gas mains on the security of the district fund and general district rate any sums not exceeding twenty-six thousand pounds;

(D) Gas meters and fittings on the security of the district fund and general district rate any sums not exceeding twenty thousand pounds:

- (3) For payment of the costs charges and expenses referred to in the section of this Act whereof the marginal note is "Costs of Act" the sum required for that purpose as to one-half thereof on the security of the borough fund and borough rate and as to the other half thereof on the security of the district fund and general district rate:

Provided that the provisions of this section shall not limit the powers conferred upon the Corporation by the section of this Act whereof the marginal note is "Security for principal moneys."

21. The Corporation independently of any other borrowing power may from time to time with the sanction of the Local Government Board borrow at interest such further moneys as may be required for the purposes of their gas undertaking on the security of the district fund and general district rate Provided that the provisions of this section shall not limit the powers conferred upon the Corporation by the section of this Act whereof the marginal note is "Security for principal moneys."

Power to
borrow
additional
moneys with
consent of
Local
Government
Board.

22. In calculating the amounts which the Corporation may borrow under any other borrowing power any moneys they may borrow under the powers of this Act shall not be reckoned and

Certain
regulations
of Public
Health Acts
not to apply.

A.D. 1910. the powers of the Corporation shall not be restricted by any of the provisions of the Public Health Acts.

Mode of
raising
money.

23. The Corporation may raise all or any moneys which they are authorised to borrow under this Act or which they may hereafter borrow with the sanction of the Local Government Board by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions contained in the section of this Act whereof the marginal note is "Sinking fund" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

Provisions
of Public
Health Act
1875 as to
mortgages
to apply.

24. Subject to the provisions of the section of this Act of which the marginal note is "Security for principal moneys" sections 236 to 238 of the Public Health Act 1875 (as to the form register and transfer of mortgages) shall apply with all necessary modifications to all mortgages granted by the Corporation.

Repayment
of borrowed
money.

25. All moneys borrowed by the Corporation under the authority of this Act shall be paid off within the periods hereinafter respectively mentioned (in this Act referred to as "the prescribed period") (that is to say):—

As to moneys borrowed for the purposes (1) (A) and (2) (c) in the section of this Act whereof the marginal note is "Power to borrow" within thirty years from the date or dates of borrowing the same;

As to moneys borrowed for the purposes (1) (B) and (2) (D) in the said section mentioned within ten years from the date or dates of borrowing the same;

As to moneys borrowed for the purpose (3) in the said section mentioned within five years from the passing of this Act; and with respect to moneys borrowed by the Corporation under the authority of this Act with the consent of the Local Government Board within such period not exceeding sixty years as that Board may prescribe.

Mode of
payment off
of money
borrowed.

26. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by

one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the date of borrowing the sum in respect of which the payment is made. A.D. 1910.

27.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either— Sinking fund.

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called “a non-accumulating sinking fund”; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called “an accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

A.D. 1910.

(5) (A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such equal annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation out of the revenue and fund or rate on the security of which the moneys shall have been borrowed in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided always that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments

to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed. A.D. 1910.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of that Board discontinue the equal annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

28. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof. Protection of lender from inquiry.

29. The Corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them under this Act or any previous Act or Order relating to the borough may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or any interest thereon not entered in their register. Corporation not to regard trusts of moneys lent.

30. The mortgagees of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom Appoint-ment of a receiver.

A.D. 1910. the application for a receiver is made shall not be less than five hundred pounds in the whole. The application for the appointment of a receiver shall be made to the High Court.

Power to
re-borrow.

31. If the Corporation pay off any moneys borrowed by them under this Act otherwise than by instalments or by means of a sinking fund or out of the proceeds of the sale of land or other property or out of fines or premiums on leases or out of other moneys received on capital account not being borrowed moneys they may re-borrow the same but all moneys so re-borrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the moneys originally borrowed and the obligations of the Corporation with respect to the repayment of the loan and to the provision to be made for such repayment shall not be diminished by reason of such re-borrowing.

Return to
Local
Government
Board as to
repayment
of debt.

32.—(1) The borough accountant shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the borough accountant showing for the next year preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the borough accountant shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the

making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1910.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

33. All money borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which they are respectively authorised to be borrowed and to which capital is properly applicable. Application of money borrowed.

34. All expenses incurred by the Corporation in the execution of this Act which are not defrayed out of borrowed moneys or otherwise provided for shall be defrayed as to sanitary matters and as to gas matters out of the district fund and general district rate and as to other matters out of the borough fund and borough rate or the district fund and general district rate as the Corporation may in their discretion having regard to the object of the expenditure think fit. Expenses of execution of Act.

35.—(1) All principal moneys may be charged indifferently upon all the revenues of the Corporation and the interest for the time being payable thereon shall rank equally with interest or dividends on all other securities of the Corporation created or granted in pursuance of any statutory borrowing power and such interest and dividends shall be the first charge on all the revenues of the Corporation. Provided that such provisions shall not prejudicially affect the rights under any existing mortgages granted by the Corporation. Security for principal moneys.

(2) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment

A.D. 1910. of the sums borrowed or to be borrowed by the Corporation as aforesaid and for the interest thereon. Provided that (A) all such sums borrowed or to be borrowed shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted and (B) the interest on all such sums borrowed or to be borrowed as aforesaid shall be paid out of the funds rates or revenues out of which they would have been payable respectively if this section had not been enacted.

(3) The forms of mortgage and transfer of mortgage respectively contained in the schedule to this Act or forms to the like effect varied as circumstances may require may be used and shall be sufficient for the purposes of this section.

Scheme for
fixing
equated
periods and
consolidat-
ing loans.

36.—(1) The Corporation may at any time hereafter and from time to time make a scheme for prescribing one or more equated periods within which all or any loans contracted by them under statutory borrowing powers including the loans borrowed by the body formerly known as the Middlesbrough School Board the liability in respect of which was by the provisions of the Education Act 1902 transferred to the Corporation shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto.

(2) No scheme made by the Corporation under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act. Provided that nothing in any scheme made under this section shall prejudice or affect the security rights or remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any Corporation stock existing at that time except with the consent of such mortgagee or holder.

(3) The Corporation may with the sanction of the Local Government Board and on the security of the revenues funds or rates respectively on the security of which the moneys included in the scheme were respectively authorised to be borrowed borrow

such moneys as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Corporation for their consent thereto. A.D. 1910.

(4) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

37.—(1) Whenever in any year it shall appear from the accounts that the receipts in respect of the gasworks or markets undertaking of the Corporation exceed in amount the expenses in respect of the same undertaking the Corporation may if they think fit set aside in respect of that undertaking such an amount of money as they think reasonable not exceeding the amount of the difference between the said receipts and expenditure for the purpose of providing a reserve or renewals fund. Reserve or renewals funds.

(2) Such reserve or renewals fund shall be applicable to answer any deficiency at any time happening in the income of the undertaking in respect of which the reserve or renewals fund is created and the expenses in respect of that undertaking in any year exceeding the receipts in respect thereof for that year or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the said undertaking or any extraordinary expenditure.

PART IV.

ICE CREAMS.

38.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity who within the borough— For regulating manufacture and sale of ice cream &c.

(A) Causes or permits ice cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any

A.D. 1910.

proper precaution for the due protection of such commodity from infection or contamination; or

(c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Corporation shall compensate the owner of the ice cream commodity or materials so destroyed.

(3) Every dealer in ice cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

Inspection
of premises
of dealers in
ice cream.

39.—(1) Any officer duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of entry and inspection into and of the premises of any manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Corporation would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned.

(2) Any person refusing entry into such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings for each offence.

Repeal of
Part VI. of
Act of 1903.

40. The provisions of Part VI. of the Middlesbrough Corporation Act 1903 relating to the manufacture sale and storage of ice creams are hereby repealed.

Public notice
to be given
of provisions
of this Part
of Act.

41.—(1) Public notice of the provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the borough and by a notice affixed outside the town hall and by

the distribution of handbills amongst persons affected or likely to be affected as far as such persons can reasonably be ascertained. A.D. 1910.

(2) A printed copy of the notice affixed outside the town hall sealed with the corporate seal shall be sufficient evidence that the provisions of this section have been complied with.

PART V.

SALE OF COKE.

42.—(1) Every person who shall sell or offer for sale coke from any vehicle in any street shall sell the same or offer the same for sale in sacks with a metal label affixed to the top of every such sack indicating the correct legal weight or measure of coke therein. Regulating sale of coke by street hawkers.

(2) Any purchaser of coke from any vehicle in any street and any inspector of weights and measures or other officer appointed by the Corporation may require that any coke sold or offered for sale as aforesaid be weighed or re-weighed or measured or re-measured by any instrument or measure stamped by an inspector of weights and measures Provided—

(A) No seller of coke or person in charge of a vehicle in which coke is carried shall be required under this section to carry coke beyond such distance not exceeding half a mile as may be prescribed in that behalf by the Corporation:

(B) Where any such coke has at the instance of the purchaser been weighed or re-weighed or measured or re-measured in pursuance of this section and found to be of the weight or measure stated in that behalf by the seller of the coke or the person in charge of the vehicle the purchaser shall be liable to the payment of all reasonable costs actually incurred of and incidental to the weighing or re-weighing or measuring or re-measuring.

(3) If the owner or any person in charge of any vehicle from which coke is being sold or offered for sale in any street wilfully makes any false statement as to the weight or measure of the coke in any sack or wilfully increases such weight by damping such coke or wilfully does any any other act by which the purchaser of the coke shall be defrauded or fails to comply

A.D. 1910. with the other provisions of this section or obstructs any weighing or re-weighing or measuring or re-measuring authorised by this section he shall be liable for every such offence to a penalty not exceeding five pounds.

(4) Public notice of the provisions of this section shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the borough and by a notice affixed outside the town hall and by the distribution of hand bills amongst persons affected or likely to be affected as far as such persons can reasonably be ascertained. A printed copy of the notice affixed outside the town hall sealed with the corporate seal shall be sufficient evidence that the provisions of this section have been complied with.

PART VI.

MISCELLANEOUS.

Power to
create acci-
dent fund.

43. The Corporation may if they think fit form a fund to be called "the accident fund" to provide for meeting claims upon them under the common law the Employers' Liability Acts or the Workmen's Compensation Acts or otherwise in respect of any accident occurring in the execution of any of their powers as a Corporation and such fund shall be formed by annually appropriating thereto such sum out of any of their revenues as they from time to time deem expedient and such sums shall be invested at compound interest in or upon any statutory securities and accumulated until the same shall amount to the sum of twelve thousand pounds. Provided that the Corporation may from time to time or at any time resort to that fund for any purpose mentioned in this section notwithstanding that the same shall not then have reached or shall have been reduced below the said sum of twelve thousand pounds and if the said fund be reduced at any time it may in manner provided by this section be restored to the said amount.

Houses in-
fested with
vermin to be
cleansed.

44.—(1) If the medical officer has reasonable cause to suppose that any house is infested with vermin he or any inspector of nuisances may enter on such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin.

(2) Where on the certificate of the medical officer it appears to the Corporation that any house is infested with vermin the

Corporation shall give notice in writing to the owner or occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and if so required in the notice to remove the wallpaper from the walls of such house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require. A.D. 1910.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified he shall be liable on summary conviction to a fine not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Corporation may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Corporation in so doing shall (subject as hereinafter provided) be recoverable summarily as a civil debt from the person making the default.

(4) Every person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(5) Upon any proceedings under this section the court may inquire as to whether any requirement contained in any notice given or any work done by the Corporation was reasonable and as to whether the costs and expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom the notice was given and the Court may make such order concerning such costs and expenses or their apportionment as appears to the Court to be just and equitable under the circumstances of the case.

45. If the owner or occupier of any premises within the borough desires that the sewer or drain from such premises shall be made to communicate with any sewer of the Corporation such communication shall be made by the Corporation upon the cost or estimated cost of making the communication being paid to the Corporation or the payment thereof to them being secured to their satisfaction and the Corporation may execute all works necessary for that purpose. Corporation may make communications between private drains and their sewers on payment &c.

A.D. 1910.

Wilful
damage to
drains water-
closets &c.

46. If any person causes any drain watercloset earth-closet privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

Regulation
dustbins.

47. The Corporation may by notice in writing require the owner or occupier of any dwelling-house to provide galvanised iron or enamelled iron dustbins for the convenient removal of house refuse and such dustbins shall be of such size and construction as may be approved by the Corporation and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings Provided that this section shall not authorise the Corporation to require the provision of a dustbin thereunder in any case in which a dustbin or ashpit in use at the passing of this Act is of suitable size and in proper order and condition.

Recovery of
penalties &c.

48. Save as otherwise by this Act expressly provided all offences against this Act and penalties forfeitures damages costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with the penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

As to appeal.

49. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Corporation or of or by any officer or valuer of the Corporation or by any conviction or order by a court of summary jurisdiction under any provision of this Act may appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts.

50. All penalties recovered under this Act (except penalties against the Corporation) shall be paid to the borough treasurer and be by him as to penalties in connection with municipal matters carried to the credit of the borough fund as to penalties in connection with sanitary matters carried to the credit of the district fund and as to penalties in connection with other matters carried to such fund as the Corporation may direct.

A.D. 1910.
Penalties to
be paid over
to treasurer
&c.

51. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Section 70 of the Middlesbrough Corporation Act 1892 and section 63 of the Middlesbrough Corporation Act 1903 shall be read and have effect as if the words "being a member of the council or" were omitted therefrom.

Judges not
disqualified.

52. In the case of any notice or other such document under this Act requiring authentication by the Corporation the signature of the mayor or town clerk or other duly authorised officer of the Corporation shall be sufficient authentication. Notices orders and any other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by the two hundred and sixty-seventh section of that Act authorised to be served. Provided that in the case of any company any such notice or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Authentica-
tion and
service of
notices &c.

53.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purpose of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Inquiries
by Local
Government
Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

A.D. 1910.

Costs of Act

54. All the costs charges and expenses preliminary to and of and incidental to the preparing and obtaining this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and borough rate and the district fund and general district rate in equal proportions or out of moneys to be borrowed for that purpose under the authority of this Act.

The **SCHEDULE** referred to in the foregoing Act.

FORM OF MORTGAGE.

COUNTY BOROUGH OF MIDDLESBROUGH.

THE MIDDLESBROUGH CORPORATION ACT 1910.

Mortgage No.

By virtue of the Middlesbrough Corporation Act 1910 and of all other their powers in that behalf them enabling the mayor aldermen and burgesses of the county borough of Middlesbrough (hereinafter referred to as "the Corporation") in consideration of the sum of pounds paid to the treasurer of the said borough by of (who with executors administrators and assigns are hereinafter called "the mortgagee") do hereby grant and assign unto the mortgagee such proportion of the revenues of the Corporation in the said Act defined as the said sum of pounds doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee until the said sum be repaid to the said with interest at the rate of per centum per annum by equal half-yearly payments on the first day of July and the first day of January in each year from the date hereof:

And it is hereby agreed that the principal sum secured by these presents shall be repaid at the office of the treasurer of the said borough on the day of one thousand nine hundred and (or at the option of the Corporation or of the mortgagee by the party desiring to make such repayment or requiring such

[10 EDW. 7 &
1 GEO. 5.]

Middlesbrough Corporation
Act, 1910.

[Ch. cxix.]

repayment to be made as the case may be giving to the other
months' notice in writing of such or intention).

A.D. 1910.

Given under the common seal of the Corporation this day
of one thousand nine hundred and

Sealed in the presence of

L.S.

Town Clerk.

Received from the within named

the sum of

being the consideration money expressed to be paid by the within
named [] to the Corporation of
Middlesbrough.

Borough Treasurer.

Entered on the Middlesbrough register of mortgages this
day of 19

Town Clerk.

FORM OF TRANSFER OF MORTGAGE.

COUNTY BOROUGH OF MIDDLESBROUGH.

THE MIDDLESBROUGH CORPORATION ACT 1910.

I of in consideration of the sum
of paid
to me by of (hereinafter called
"the transferee") do hereby transfer to the transferee executors
administrators and assigns the mortgage numbered bearing date
the day of one thousand nine hundred
and for securing the sum of pounds of the
revenues of the Corporation of the borough of Middlesbrough and all
my right and interest under the same subject to the several conditions
on which I hold the same at the time of the execution hereof and I the

[Ch. cxix.]

Middlesbrough Corporation
Act, 1910.

[10 EDW. 7 &
1 GEO. 5.]

A.D. 1910. transferee for myself my executors administrators and assigns do hereby
agree to take the said mortgage security subject to the same conditions.

Dated this day of one thousand nine
hundred and

Signed sealed and delivered by the }
above-named
in the presence of

L.S.

Name of witness

Address

Occupation or description

Signed sealed and delivered by the }
above-named
in the presence of

L.S.

Name of witness

Address

Occupation or description

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